

# SENATE . . . . . No. 2191

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Patrick M. O'Connor***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a special commission to investigate and study the feasibility of establishing a municipal building financing authority.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:                 |                  |
|------------------------------|-----------------------------------|------------------|
| <i>Patrick M. O'Connor</i>   | <i>First Plymouth and Norfolk</i> |                  |
| <i>David T. Vieira</i>       | <i>3rd Barnstable</i>             | <i>1/24/2025</i> |
| <i>Steven George Xiarhos</i> | <i>5th Barnstable</i>             | <i>1/27/2025</i> |
| <i>John J. Marsi</i>         | <i>6th Worcester</i>              | <i>8/25/2025</i> |

# SENATE . . . . . No. 2191

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By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 2191) of Patrick M. O'Connor, David T. Vieira and Steven George Xiarhos for legislation to establish a special commission to investigate and study the feasibility of establishing a municipal building financing authority. State Administration and Regulatory Oversight.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 2037 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing a special commission to investigate and study the feasibility of establishing a municipal building financing authority.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. There is hereby established a special commission to investigate and study  
2     the feasibility of establishing a municipal building finance authority.

3           SECTION 2. The commission shall: (1) consider recommendations from state and federal  
4     reports, relative to the establishment of a municipal building finance authority; (2) identify and  
5     consider state and private funding sources with consideration for providing grants and loans to  
6     cities and towns for the planning, design, and construction of municipal buildings; (3) assess  
7     innovative financing approaches for assisting municipalities in the planning and construction of  
8     municipal buildings including, but not limited to, councils-on-aging facilities, public safety  
9     facilities, town halls, and other municipal buildings or facilities; and (4) determine specific

10 powers of a municipal building finance authority including but not limited to (a) establishing  
11 grant programs, (b) providing architectural or other technical advice and assistance to  
12 municipalities, general contractors, subcontractors, construction or project managers, designers  
13 and others in the planning, maintenance and establishment of municipal facilities; (c) perform or  
14 commission a needs survey to ascertain the capital construction, reconstruction, maintenance and  
15 other capital needs for municipal facilities in the commonwealth, and (d) recommend to the  
16 general court legislation as necessary to further the purposes of establishing a municipal building  
17 finance authority.

18         SECTION 2. The municipal building finance commission shall be comprised of the  
19 following 13 members: 2 members of the senate appointed by the senate president; 2 members  
20 of the house of representatives appointed by the speaker of the house; 1 member of the senate  
21 and 1 member of the house of representatives appointed by the minority leader of each; the state  
22 treasurer or a designee, the secretary of administration and finance or a designee, the secretary of  
23 public safety and security or a designee, the secretary of elder affairs or a designee; the secretary  
24 of housing and economic development or a designee; the executive director of the school  
25 building authority or a designee and a representative of the Massachusetts Municipal  
26 Association.

27         The members of the commission shall be appointed not later than 90 days after the  
28 effective date of this act and shall serve until the completion of the report.

29         SECTION 3. The commission shall report to the general court the results of its study  
30 together with recommendations and drafts of legislation by filing the same with the clerks of the  
31 senate and the house of representatives on or before December 31, 2026.